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Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: July 29, 2026

Case Name: Hartley, et al. v. Living Dead Media, et al.

Case No.: 25STCV01127

Matter: (1) Motion for Preliminary Injunction

(2) Demurrer

Ruling: The Motion for Preliminary Injunction is denied.

The Demurrer is sustained. Leave to amend is to be argued.

Plaintiffs to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

Cross-Complainant Living Dead Media, LLC ("LDM") filed its Cross-Complaint on August 1, 2025, asserting ten causes of action against Cross-Defendants: (1) Declaratory Relief, (2) Malicious Prosecution, (3) Unfair Business Practices Under Cal. Civ. Code 17200, (4) Unfair Competition, (5) Intentional Interference With Prospective Economic Advantage, (6) Intentional Interference With Contractual Relations, (7) Violation of §43 of the Lanham Act, 15 U.S.C. §1125 (a)(1)(A) – False Association, (8) Violation of §32 of the Lanham Act, 15 U.S.C. §1114 – Infringement, (9) California Common Law Trademark

Infringement, and (10) DMCA Misrepresentation.

In its Cross-Complaint, LDM alleges that it is the exclusive owner of the intellectual property, trademark, and film development rights surrounding The Return of the Living Dead franchise, asserting that Cross-Defendants (including original cast members) breached underlying license agreements and engaged in an unlawful scheme to undermine LDM's commercial expansion. LDM claims that after it invested substantial resources to develop consumer merchandise, secure trademarks, and greenlight a new sequel/reboot motion picture, Cross-Defendants tortiously interfered with LDM's business operations by asserting unauthorized ownership over the franchise, contacting LDM's commercial partners and event organizers, demanding unpaid royalties, and improperly attempting to license their individual names and likenesses in connection with unauthorized movie projects and merchandise.

Preliminary Injunction

LDM seeks a preliminary injunction to restrain and enjoin the Cross-Defendants (including original cast members) from producing, developing, or licensing any motion pictures or spin-offs, exploiting the title or elements of The Return of the Living Dead, and interfering with LDM's commercial licensees and planned movie projects.

"In deciding whether to issue a preliminary injunction, a court must weigh two 'interrelated' factors: (1) the likelihood that the moving party will ultimately prevail on the merits and (2) the relative interim harm to the parties from issuance or nonissuance of the injunction. . . . The trial court's determination must be guided by a 'mix' of the potential-merit and interim-harm factors; the greater the plaintiff's showing on one, the less must be shown on the other to support an injunction." (Butt v. State of California (1992) 4 Cal.4th 668, 677-78 (citations omitted).) "Plaintiff [or Cross-Complainant] carries the burden of proof and persuasion on these issues." (Drakes Bay Oyster Co. v. California Coastal Com. (2016) 4 Cal.App.5th 1165, 1172.)

First, LDM fails to demonstrate a probability of success on the merits regarding its asserted film rights and exclusive franchise control. Public copyright records establish that the 1983 shooting script for The Return of the Living Dead was registered by Hemdale Film Corporation, and the 1985 motion picture copyright was registered to Cinema '84. In 2015, Cinema '84 assigned the motion picture copyright to Metro-Goldwyn-Mayer Studios, Inc. ("MGM"). LDM does not allege in its Cross-Complaint that it owns the copyright to the 1985 film or the 1983 script. While LDM asserts rights to control movie production or sequels, the official chain of title resides with MGM.

Furthermore, LDM lacks trademark protection for movie production or distribution services. Records from the U.S. Patent and Trademark Office ("USPTO") confirm that LDM's 2017 International Class 41 application for motion picture production services was refused and ultimately abandoned in 2018. While LDM holds registered marks for ancillary merchandise (e.g., cosmetics, beverages, costumes), it holds no active mark for film or entertainment services. LDM therefore lacks the legal standing to enjoin Cross-Defendants from utilizing film-related rights.

Second, an unreasonable delay in seeking emergency relief refutes the assertion of urgent injury. The record demonstrates that LDM was aware of the complained-of conduct as early as July 2024, yet waited approximately 16 months—until November 2025—to serve its motion for preliminary injunction. The balance of equities does not weigh in LDM's favor.

Accordingly, the Motion for Preliminary Injunction is denied.

Demurrer

Plaintiffs and Cross-Defendants Beverly Hartley, Linnea Quigley, Thom Matthews, Miguel Nunez, Jr., John Philben & Alba Francesca as representative of James Karen now demur to the entirety of the Cross-Complaint for uncertainty and failure to state sufficient facts.

No opposition was filed.

When considering demurrers, courts read the allegations liberally and in context, and “treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (Serrano v. Priest (1971) 5 Cal.3d 584, 591.) “A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (Hahn v. Mirdaç (2007) 147 Cal.App.4th 740, 747.) It is error “to sustain a demurrer without leave to amend if the plaintiff shows there is a reasonable possibility any defect identified by the defendant can be cured by amendment.” (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 967.)

LDM's state law tort and unfair competition claims are preempted by Section 301 of the federal Copyright Act. Under the two-part preemption test, state law claims are preempted if: (1) the work at issue falls within the subject matter of copyright as defined in 17 U.S.C. §§ 102 and 104; and (2) the rights asserted under state law are equivalent to any of the exclusive rights within the general scope of copyright as specified by 17 U.S.C. § 106.

Here, the underlying subject matter—the 1985 motion picture, screenplays, and potential sequels or derivative works—falls directly within the statutory subject matter of copyright. Moreover, LDM's tort claims allege that Cross-Defendants improperly interfered with LDM's ability to exploit, license, or produce movie projects. Because these claims allege nothing more than unauthorized exercise of distribution, reproduction, or derivative creation rights without an "extra element" that qualitatively alters the nature of the action, they are preempted by federal copyright law (17 U.S.C. § 301). LDM cannot evade federal copyright requirements or its lack of chain of title by recharacterizing copyright claims as state law torts.

Even if not preempted, the claims fail on the merits as pleaded. Judicially noticed public records establish that MGM, not LDM, holds record title to the 1985 motion picture copyright, and LDM's Class 41 USPTO application for film services was abandoned. LDM cannot establish the requisite business expectancy or enforceable legal right required for tortious interference claims regarding movie production. Additionally, LDM's merchandise trademarks do not give LDM ownership over the individual actors' statutory right of publicity (Civ. Code § 3344).

To the extent LDM bases its tort claims on cease-and-desist letters or communications sent to third-party event organizers and partners, those statements are absolutely privileged. Civil Code § 47(b) protects pre-litigation communications made in good faith to achieve the objects of litigation. (Rubin v. Green (1993) 4 Cal.4th 1187, 1194.)

For all these reasons, the Demurrer is sustained. Leave to amend is to be argued. The RJN are granted.